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Case Number: 23PSCV02093 Hearing Date: September 3, 2026 Dept: G

Defendant

Cynthia Parulan-Colfer's Motion for Summary Judgment, or in the Alternative,
Summary Adjudication

Joinder:

Defendants HLP ED Foundation, SVG Training Foundation, Inc., and San Gabriel
Career Foundation, Inc.

Respondent:

Plaintiff Hacienda La Puente Unified School District

TENTATIVE

RULING

Defendant

Cynthia Parulan-Colfer's Motion for Summary Judgment is GRANTED.

BACKGROUND

This

is an action arising from alleged misappropriation of non-profit funds. Defendant HLP ED Foundation (HLP ED) was a non-profit public benefit corporation initially founded in August 2008. Its alleged purpose was to provide scholarships for the students of plaintiff Hacienda La Puente Unified School District (HLPUSD) and fund special projects that enhanced students' academic and co-curricular activities. Since HLP ED's founding, defendant Cynthia Parulan-Colfer (Parulan-Colfer) served as a director. In 2016 and 2018, Parulan-Colfer and another HLP ED board member allegedly used HLP ED's funds to

provide scholarships for Parulan-Colfer's children outside the normal scholarship review process. In 2019, HLP ED's funds were allegedly used for Parulan-Colfer's retirement party. And in July 2020, HLP ED's funds were allegedly used to pay the law firm of Parulan-Colfer's husband for legal services.

In September 2020, HLP ED was dissolved and Parulan-Colfer allegedly transferred its remaining funds to other non-profits founded by Parulan-Colfer including defendants SVG Training Foundation, Inc. (SVG Training Foundation) and San Gabriel Career Foundation, Inc. (San Gabriel Career Foundation). As a result, at least one of HLP ED's scholarship recipients was unable to cash a scholarship check.

On July 12, 2023, Anthony Duarte (Duarte) and HLPUSD (collectively, Plaintiffs) filed the Complaint. On March 22, 2024, Plaintiffs filed the operative Second Amended Complaint, alleging causes of action for (1) breach of fiduciary obligations and duties, (2) [. . .], (3) [. . .], (4) fraud, (5) [. . .], (6) [. . .], (7) money had and received, (8) unfair business practices, (9) intentional interference with prospective economic advantage, (10) declaratory relief, (11) [. . .], (12) [. . .], (13) [. . .], and (14) [. . .]. (The court lists only the operative causes of action and omits the non-operative causes of action subject to demurrer without leave to amend.) Plaintiffs initially named Rob Bonta, the Attorney General of the State California, as an indispensable party but later dismissed him from this action.

On June 22, 2026, Parulan-Colfer filed this motion for summary judgment, or in the alternative, summary adjudication, and HLP ED, SVG Training Foundation, and San Gabriel Career Foundation (collectively, Co-Defendants) filed a joinder to the motion. On August 14, 2026, HLPUSD filed the opposition, and on August 21, 2026, Parulan-Colfer filed the reply.

The motion is set for hearing on September 3, 2026.

EVIDENTIARY
OBJECTION

Parulan-Colfer objects to portions of the declaration of Jenny Dominguez (Dominguez).

The following objections are SUSTAINED: 1–7 (improper expert opinion; Evid. Code, §§ 800, 803).

ANALYSIS

Parulan-Colfer

moves for judgment on each of the causes of action and issues related to alter ego liability and damages. For the following reasons, the motion is GRANTED.

Legal

Standard

A

motion for summary judgment or adjudication provides “courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) In a motion for summary judgment or summary adjudication, “the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) It must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, quoting Code Civ. Proc., § 437c, subd. (c).) A defendant moving for summary judgment or summary adjudication “has met [their] burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).)

To

establish a triable issue of material fact, the opposing party must produce substantial responsive evidence. (See Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) Courts “liberally construe the evidence in

support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)² “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

Discussion

Parulan-Colfer

argues that she is entitled to judgment on all causes of action because Plaintiffs cannot prove the elements of fraud. (Even though fraud is only one of the listed causes of action, the court notes that all remaining causes of action are based on the same incidents of alleged fraud.) The court agrees.

Under

the relevant civil jury instruction, the elements of intentional misrepresentation are (1) that the defendant represented to the plaintiff that a fact was true; (2) that the representation was false; (3) that the defendant knew the fact was false or made the representation with reckless disregard for the truth; (4) that the defendant intended the plaintiff to rely on the representation; (5) that the plaintiff reasonably relied on the representation; (6) that the plaintiff was harmed; and (7) that the plaintiff’s reliance on the representation was a substantial factor in their harm. (See CACI No. 1900 (2026), paraphrased.)

Moving

Party’s Burden

Parulan-Colfer

meets her initial burden to demonstrate that Plaintiffs cannot establish all elements of fraud. Here, the alleged representations that serve as the basis for Plaintiffs’ claims against Parulan-Colfer are (1) a solicitation letter and (2) comments from a charity auction dinner. (UMF No. 41.) Parulan-Colfer presents testimonial evidence that at the time she sent the solicitation letter and made comments at the charity auction dinner, she intended to use the proceeds for student scholarships through HLP ED and school grants for HLPUSD. (UMF Nos. 35–36, 39.) The same testimonial evidence shows that

Parulan-Colfer did not intend at the time she made the representations for HLP ED to dissolve. (UMF Nos. 37–38.) Thus, Parulan-Colfer's evidence demonstrates that she did not make a representation that she knew was false or that was made with a reckless disregard for the truth.

Since

Parulan-Colfer establishes that Plaintiffs cannot establish an essential element of their claims based on fraud, the burden shifts to HLPUSD to show a triable issue of material fact that she made a representation she knew was false or with a reckless disregard for the truth. (See Sangster, *supra*, 68 Cal.App.4th at 166.)

Opposing

Party's Burden

HLPUSD

fails to meet its burden to establish a triable issue of material fact that Paulan-Colfer made a representation she knew was false or with reckless disregard for the truth. As a preliminary matter, the court notes that the Second Amended Complaint alleges that Parulan-Colfer's alleged fraud is based on her representations that the purpose of HLP ED was to benefit HLPUSD and its students. (See 2AC, ¶¶ 83–84; see also UMF No. 41.)

However, HLPUSD does not base its opposition on Parulan-Colfer's alleged solicitations. Instead, the opposition is based on Parulan-Colfer's alleged representations about HLP ED's nonprofit status. (See Opp., pp. 11–13.)

Parulan-Colfer's motion for summary judgment and adjudication is necessarily premised on Plaintiffs' inability to succeed on their claims as asserted in the Second Amended Complaint. As such, HLPUSD's arguments based on an alternative theory of liability not grounded in the Second Amended Complaint must necessarily fail. Even if the court considers HLPUSD's argument in opposition, it is not supported by facts in its responsive separate statement.

Therefore, the court may disregard HLPUSD's arguments as to

Parulan-Colfer's purported statements about HLP ED's nonprofit status. (See *United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337, establishing the

Golden Rule of Summary Adjudication that "if it is not set forth in the separate statement, it does not exist."; see also *Parkview Villas Assn., Inc. v. State Farm Fire*

and Casualty Co. (2005) 133

Cal.App.4th 1197, 1214, clarifying that the "it" in the Golden Rule refers to the material fact and not the evidence in support of that fact.)

Moreover, with few exceptions, HLPUSD's responses to Parulan-Colfer's undisputed material facts are based on the purported expert opinions of Jenny Dominguez. (See, e.g., UMF Nos. 36–39, citing Dominguez Decl., ¶ 7 in opposition to Parulan-Colfer's evidence.) However, the declaration by Dominguez does not provide the court with a proper basis upon which the court may rely on her expert opinion. Specifically, Dominguez simply states she is "a Partner with the firm of HKA Global, LLC." (Dominguez Decl., ¶ 1.) Dominguez does not establish that she has special knowledge, skill, experience, training, or education sufficient to qualify as an expert. Additionally, Dominguez fails to demonstrate and substantiate that her opinion is based on a proper foundation upon which the court may rely. (See Evid. Code, §§ 720, subds. (a)–(b); 801, subd. (b).)

Since

there is no triable issue of material fact that Parulan-Colfer did not make a representation she knew was false or with reckless disregard for the truth, the court finds Parulan-Colfer is entitled to judgment on all six remaining cause of action.

Therefore,

the motion for summary judgment is GRANTED. Since the court decides the motion based on the elements of fraud, the parties' arguments regarding the statute of limitations, alter ego liability, punitive and exemplary damages, and limitations on damages are HELD IN ABEYANCE.

CONCLUSION

Based

on the analysis above, the motion for summary judgment is GRANTED.